

ἂν εὐσημία γένηται. δεῖ δὲ προβούλευμα γενέσθαι καὶ περὶ  
20 τούτων.

45. ἡ δὲ βουλή πρότερον μὲν ἦν κυρία καὶ χρήμασιν ζημιῶσαι  
καὶ δῆσαι καὶ ἀποκτείνειαι. — καὶ Λυσίμαχον αὐτῆς ἀγαγούσης  
ὡς τὸν δῆμιον, καθήμενον ἤδη μέλλοντα ἀποθνήσκειν, Εὐμη-

19 ΓΕΝΕΣΘΑΙ edd.: γίνεσθαι K-W.

XLV 1 χρήμασι H-L. 2 post ἀποκτείνειαι lacunam indicant K-W. <Λυσίμ. δ' >  
deleto καὶ Papageorgios. αὐτῆς <ποτ' ἀπ' > ἀγαγούσης B<sup>4</sup> appendix. 3 καθήμενον  
ἦδη K, K-W, H-L, Th; καθ. ἡδη <καὶ> Jos. Mayor (B); \*καὶ αὐθήμερόν\* ἦδη S<sup>1</sup>, coll.  
Aeschin. I § 16 (lex) παραδοθεὶς τοῖς ἑνδεκα τεθνάτω αὐθήμερόν. 3, 5 ΑΠΟΘΝΗΣΚΕΙΝ:  
ἀποθνήσκειν edd., cf. Meisterhans, p. 177<sup>3</sup>, n. 1475.

have become appreciably weaker, and the story would have lost its point. On the bearing of the date of election on the 'deposition of Pericles,' see *Class. Rev.* v 165, viii 78 f; Swoboda in *Hermes* xxviii part 4; Beloch, i 529 n. 1.

εὐσημία] 'on whatsoever days there are signs of fair weather.' εὐσημία is found in Hippocr. 1170; εὐσημος in *Meteor.* p. 363 a 27, γέγραπται τοῦ μάλ-  
λον εὐσημῶς ἔχειν ὁ τοῦ ὀρίζοντος κύκλος.

The proviso is one of practical importance in the case of a large meeting on an open hill-side like that of the Pnyx. Even when the ordinary ἐκκλησίαι came to be held in the theatre of Dionysus (e.g. in 290 B.C.), the Pnyx continued to be the scene of the ἀρχαι-  
ρεσίαι (Pollux viii 133).

When the δῆμος was desiring to elect Cleon as στρατηγός, there was thunder and lightning, an eclipse of the moon and afterwards one of the sun, Arist. *Nub.* 581-6 (and Schol.). Presumably amid all these portents the election was deferred. In Thuc. v 45 ult. an ἐκκλησία is adjourned because of an earthquake. Even a drop of rain was sufficient to be regarded as a 'sign from heaven,' διοσημία 'οἷ τι καὶ βάνις βέβληκῇ με (*Ach.* 171). Cf. Suidas, s.v.

προβούλευμα κτλ.] In accordance with the general principle ordained by Solon, Plut. *Sol.* 19, μηδὲν ἑάν ἀπροβουλευτον εἰς ἐκκλησίαν ἐσφάρεσθαι.

#### XLV—XLIX. The functions of the Council.

XLV § 1. κυρία—ζημιῶσαι] The βουλή was not competent to inflict a higher fine than 500 dr., Dem. c. *Euerget.* p. 1152 § 43, (after an εἰσαγγελία) ἐν τῷ διαχειροτονεῖν ἢ βουλὴ πότεια δικαστηρίῳ παραδότη ἢ ζημιώσεται ταῖς πεντακοσίαις, ὅσον ἦν κυρία κατὰ τὸν νόμον. In a decree drawn up about 446 B.C. any encroachment on the Πελαργικὸν is punished by a

fine of 500 dr., to be inflicted after an εἰσαγγελία has been brought before the βουλή by the archon βασιλεὺς (Ditt. no. 13, 59).

δῆσαι] Arist. *Thesm.* 943, ἔδοξε τῇ βουλῇ σε δεῖν. A limitation to this right is mentioned in the oath taken by the Council in Dem. c. *Timocr.* 144, οὐδὲ δῆσ' Ἀθηναίων οὐδένα, ὅς ἂν ἐγγυητὰς τρεῖς καθιστῇ τὸ αὐτὸ τέλος τελοῦντας: πλὴν ἐάν τις ἐπὶ προδοσίᾳ τῆς πόλεως ἢ ἐπὶ καταλύσει τοῦ δήμου συνῶν ἄλλῳ ἢ τέλους τι πριάμενος ἢ ἐγγυησάμενος ἢ ἐκλέγων μὴ καταβάλλῃ. It is there stated that this oath was in the interest of untried persons to give them every opportunity for preparing for their defence. In § 148 we are told that 'Solon' made the Council ἄκρον τὸν δῆσαι, i.e. did not grant them an absolute right of imprisonment, but a limited right subject to proper bail being found. In certain cases, however, bail was not allowed, and in these the Council's right was not barred. See also 22 § 2 and 48 § 1.

Cleophon was imprisoned by the Council and then handed over to the dicastery (Lys. 30 § 10); he was condemned to death by a court consisting of the Council and a dicastery, *ib.* 11, and 13 § 12 (Newman).

Λυσίμαχον] possibly the person of that name mentioned in Xen. *Hell.* ii 4, 8, (the Thirty) Λυσίμαχον τὸν ἱππαρχὸν ἐκέλευον ἀναγαγόντα παραδοῖναι αὐτοῖς τοῖς ἑνδεκα. On the restoration of the democracy his services to the Thirty may well have been remembered against him.

καθήμενον ἤδη μέλλοντα ἀποθνήσκειν] The culprit is described as seated, ready to receive the fatal blow. The double participle is awkward, but no satisfactory improvement of the text has been suggested. Cf. Kaibel, 208.

One Sosias had a similarly narrow escape: Antiphon 5 § 70, ὁ ἀνὴρ ἀπήχθη (MSS, ἀνήχθη Dobree, ἀπελύθη Kayser,

λίδης ὁ Ἄλωπεκῆθεν ἀφείλετο, οὐ φάσκων δεῖν ἄνευ δικαστηρίου γνώσεως οὐδένα τῶν πολιτῶν ἀποθνήσκειν· καὶ κρίσεως ἐν δικαστηρίῳ γενομένης, ὁ μὲν Λυσίμαχος ἀπέφυγεν, καὶ ἐπωνυμίαν ἔσχεν ὁ ἀπὸ τοῦ τυπάνου, ὁ δὲ δῆμος ἀφείλετο τῆς βουλῆς τὸ θανατοῦν καὶ δεῖν καὶ χρήμασιν ζημιοῦν, καὶ νόμον ἔθετο, ἃν τινος ἀδικεῖν ἢ βουλή καταγνῶ ἢ ζημιώσῃ, τὰς καταγνώσεις καὶ τὰς ἐπιζημιώσεις εἰσάγειν τοὺς θεσμοθέτας εἰς τὸ δικαστήριον, καὶ ὃ τι ἂν οἱ 10 δικασταὶ ψηφίσωνται, τοῦτο κύριον εἶναι.

[Col. 24.] 2

κρίνει δὲ || τὰς ἀρχὰς ἢ βουλή τὰς πλείστας, καὶ μάλισθ' ὅσαι χρήματα διαχειρίζουσιν· οὐ κυρία δ' ἡ κρίσις, ἀλλ' ἐφέσιμος εἰς τὸ δικαστήριον. ἔξεστι δὲ καὶ τοῖς ιδιώταις εἰσαγγέλλειν ἢν ἂν βούλωνται τῶν ἀρχῶν μὴ χρῆσθαι τοῖς νόμοις· ἔφεσις δὲ καὶ 15 τούτοις ἐστὶν εἰς τὸ δικαστήριον, ἐὰν αὐτῶν ἢ βουλή καταγνῶ.

3 ΕΥΜΗΛΕΙΔΗΣ (B<sup>1</sup> coll. Φιλομηλείδης Od. ρ 134): Εὐμηλίδης K-W, H-L, K<sup>3</sup>, B<sup>2-4</sup>, Th. 4 ἈΛΩΠΕΘΗΚΗΝ coll. K. 5 <τῷ> δικαστηρίῳ K-W<sup>1,2</sup> (τῷ om. K-W<sup>3</sup>), idem in c. 46, 10 et c. 55, 7 τῷ non inserunt. 6 ἀπέφυγε H-L. ΕΥΧΕΝ (K-W, H-L, K<sup>4</sup>, Th): ἔσχε B, εἶχεν K<sup>1</sup>. 8 ἐάν H-L. 9 ἐπιζημιώσεις (nusquam alibi inventum) K, K-W, B, Th: ζημιώσεις Wyse, H-L. 12 καὶ suprascriptum agn. Sakellarios (K<sup>4</sup>, Th). 13 ἐτ' ἐφέσιμος H-L.

ἀπηλλάχθη Baiter; ἀφείλετο, in the text, suggests ἀφῆρέθη) ὑπὸ τοῦ δήμου τοῦ ὑμετέρου παραδεδομένος ἤδη τοῖς ἑνδεκα.

Εὐμηλίδης] The only passage where the name is found, as that of an Athenian, is [Dem.] 49 § 11, τῷ παιδί τοῦ Εὐμηλίδου. The date of the speech is B.C. 362.

ἀφείλετο] here 'rescued him'. It is used below in another sense: 'deprived of the power of.'

δικαστηρίῳ] without the art. in 46 § 2 and 55 § 2; but with the art. in 47 § 3, 49 § 3, 55 § 4 and 56 § 1. The article is omitted only where the court is contrasted with another (Kaibel, 208f). βουλή always has the article.

ὁ ἀπὸ τοῦ τυπάνου] 'the man who escaped the bastinado.' Schol. Arist. *Plut.* 476, τύμπανα...ξύλα, δι' ὧν τοὺς καταδίκους ἔτυπτον, and Photius, *s. v.* τύμπανον. Cf. *Lys.* 13 § 56, ὡς ἀνδροφόνον ὄντα—τῷ δημῷ παρέδοτε καὶ ἀπετυμπανίσθη, *ib.* 67, 68; and *Dem.* 9 § 61. This form of punishment was inflicted on κακοῦργοι, including ἀνδροφόνου. This confirms the conjecture that Lysimachus was arraigned for taking part in causing citizens to be put to death under the Thirty (*Xen. l. c.*). The restriction in the powers of the βουλή mentioned in this chapter has already been noticed in more general terms in c. 41, αὶ τῆς βουλῆς κρίσεις εἰς τὸν δῆμον ἐληλύθασιν, a passage referring to the time subsequent to the archonship

of Euclides. Even before that time the βουλή did not necessarily enforce its right of inflicting penalties, but sometimes exercised the option of referring the case to a law-court, cf. *CIA* i 59, (τὴν βουλὴν) κολάζειν τῶν δωροδοκούντων καταψηφισμένην, καὶ εἰς δικαστήριον αὐτοὺς εἰσάγειν, καθότι ἂν δοκῇ αὐτῇ.

ἐπιζημιώσεις] not found elsewhere. τὰ ἐπιζήμια is used of 'penalties' in *Dem.* and *Plato*; ἐπιζημιοῦν, in *Xen. Hell.* v 2 § 22; ἐπιζημίωμα, in *Pollux* viii 149. We also have ἐπιβάλλειν ζημίαν and ἐπιτιμίαν.

θεσμοθέτας] 59.

§ 2. κρίνει τὰς ἀρχὰς] Antiphon, 6 § 49, πυθόμενος αὐτοὺς (the πορισταί, πωληταί, πρακτορες and ὑπογραμματεῖς) δεινὰ καὶ σχέτλια ἐργάζεσθαι, εἰσῆγον εἰς τὴν βουλὴν.

ἐφέσιμος] [Dem.] 7 § 9, ταῦτα δὲ κύρια ἔσεσθαι οὐκ ἐπειδὴν ἐν τῷ δικαστηρίῳ τῷ παρ' ὑμῶν κυρωθῇ...ἀλλ' ἐπειδὴν ὡς ἐαυτὸν ἐπανεχθῇ, ἐφέσιμον τὴν παρ' ὑμῶν γενομένην γνῶσιν ὡς ἐαυτὸν ποιούμενος. *Lucian, pro Imaginibus* 15, ἐφέσιμον...δικην *Pollux* viii 125, (κρίσει) ἐφέσιμον.

εἰσαγγέλλειν] probably here used in the general sense of bringing to the knowledge of the Council, without reference to the special process called εἰσαγγελία. The procedure in the latter case is described by *Dr Hager in Dict. Ant. s. v.*, i 709 a.

δοκιμάζει δὲ καὶ τοὺς βουλευτὰς τοὺς τὸν ὕστερον ἐνιαυτὸν 3  
βουλευσοντας καὶ τοὺς ἐννέα ἄρχοντας. καὶ πρότερον μὲν ἦν  
ἀποδοκιμάσαι κυρία, νῦν δὲ <καὶ> τούτοις ἔφεσις ἐστὶν εἰς τὸ  
20 δικαστήριον.

τούτων μὲν οὖν ἄκνρός ἐστὶν ἡ βουλή· προβολεύει δ' εἰς τὸν 4  
ἄνθρωπον, καὶ οὐκ ἔξεστιν οὐδὲν ἀπροβούλευτον, οὐδ' ὃ τι ἂν μὴ  
προγράψωσιν οἱ πρυτάνεις, ψηφίσασθαι τῷ δήμῳ· κατ' αὐτὰ γὰρ  
ταῦτα ἔνοχος ἐστὶν ὁ νικήσας γραφῇ παρανόμων.

46. ἐπιμελεῖται δὲ καὶ τῶν πεποιημένων τριήρων καὶ τῶν  
σκευῶν καὶ τῶν νεωσοίκων, καὶ ποιεῖται καινὰς [[δὲ]] τριήρεις ἡ

19 <καὶ> τούτοις K-W, B.  
Kontos, H-L; v. Dem. 20 § 96.

23 τὸν δῆμον Papageorgios.

κατὰ γὰρ ταῦτα

XLVI 2 δὲ secl. κ (edd.); 'an δέκα?' Th.

§ 3. δοκιμάζει—βουλευτὰς] Dem. Mid.  
111, βουλευναι μου λαχόντος δοκιμαζομένου  
κατηγόρει, Neaer. 3, λαγχάνει βουλευναι  
'Απολλόδωρος· δοκιμασθεὶς δὲ καὶ ὁμόσας  
τὸν νόμον ὄρκον κτλ. Two of the  
speeches of Lysias are concerned with  
the δοκιμασία of a βουλευτής: Or. 31,  
κατὰ Φίλωνος, is a speech for the prose-  
cution; Or. 16, ὑπὲρ Μαντιθέου, for the  
defence. § 9 of the latter speech shews  
the wide scope of the scrutiny in such  
cases: ἐν δὲ ταῖς δοκιμασίαις δίκαιον εἶναι  
παντός τοῦ βίου λόγον διδόναι.

ἄρχοντας] Lys. Or. 26, κατ' Εὐάνδρον,  
is a speech in accusation of one who was  
appointed by lot to be First Archon in  
reserve. The case was heard on the last  
day but one of the preceding official year  
(midsummer, B.C. 382). The next day  
was a public holiday, and, in the event  
of his rejection, an appeal was im-  
possible: § 6, δικαστήριον...οὐ δυνατόν  
πληρωθῆναι. Dem. Lept. 90 asserts that  
the junior archons underwent a double  
δοκιμασία:—τοὺς θεσμοθέτας δις δοκιμα-  
σθέντας ἄρχεν ἐν τε τῇ βουλῇ καὶ παρ' ὧν  
ἐν τῷ δικαστηρίῳ. The δοκιμασία before  
the βουλή is called an ἀνάκρισις in Dem.  
Euclid. 66; it is described as affecting all  
the archons (ib. 70). Cf. c. 55 § 2,  
ἔφεσις] c. 55 § 2.

§ 4. οὐδὲν ἀπροβούλευτον] Plut. Sol.  
19, quoted on c. 44 ult.

προγράψωσιν] 43 § 3 ult.

γραφῇ παρανόμων] Here the illegality  
turns on a point of form. Among cases  
in point are the motion of Androtion to  
award a crown to the outgoing βουλή  
(Dem. Androt. 5); and that of Thra-  
sybulus to grant Lysias the citizenship of  
Athens (note on 40 § 2).

XLVI § 1. τῶν τριήρων] Gilbert,

i 310<sup>2</sup> n. 2.

τῶν σκευῶν] esp. of 'naval stores and  
engines,' and 'the tackling of ships.'  
[Dem.] 47, c. Euerget. § 19, σκευή τρηπικά.  
Xen. Oec. viii 12, διὰ πολλῶν...ξύλινων  
σκευῶν ('oars,' 'rudders,' 'masts,'  
'yards') καὶ πλεκτῶν ('cables') ὁρμίζεται  
ναῦς καὶ ἀνάγεται, διὰ πολλῶν δὲ τῶν  
κρεμαστῶν ('sails' and 'rigging') καλου-  
μένων πλεί. The specifications of the  
famous σκευοθήκη in the Peiraeus, designed  
by the architect Philon under the ad-  
ministration of Lycurgus (published by  
Fabricius in *Hermes* and by Foucart in  
*Bull. Corresp. Hell.*, both in 1882), are  
still extant (CIA ii 1054=Ditt. no. 352).  
This σκευοθήκη was intended τοῖς κρεμα-  
στοῖς σκεύεσιν, and (though not finished)  
was probably already in use in B.C. 329,  
a few years before the text was written.  
Cf. Dürnbach, *Lycurgue*, pp. 64—73.

τῶν νεωσοίκων] Strictly speaking, the  
νεώσοικοι are the sheds in which the  
ships are laid up, and νεώρια the dock-  
yards; but the terms are sometimes inter-  
changed (cf. *Dict. Ant.* ii 206 a, and  
Dürnbach, l.c. p. 65, n. 3). In [Xen.]  
*de Rep. Ath.* iii 2, among the duties of  
the βουλή we find νεωρίων ἐπιμεληθῆναι.  
From B.C. 347 to 323 an annual property  
tax amounting to ten talents was raised  
for the building τῶν νεωσοίκων καὶ τῆς  
σκευοθήκης (CIA ii 270).

καινὰς τριήρεις] Twenty, according to  
Diod. xi 43. In B.C. 356/5 the Council  
failed to build the requisite number of  
new triremes; Androtion nevertheless  
moved that they should receive the cus-  
tomary compliment of a golden crown;  
and for this he was attacked under a  
γραφῇ παρανόμων (Dem. Androt. 8).